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UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

2015 JUN -2 AM 10:14

STEPHEN KENNER,

Plaintiff,

Civ. Action No.:

U.S. DISTRICT COURT
EASTERN DISTRICT
OF NEW YORK

– against –

CITY OF NEW YORK, POLICE OFFICERS MICHAEL
YU AND JOHN DOE, EACH IN THEIR INDIVIDUAL
AND OFFICIAL CAPACITIES,

COMPLAINT

**JURY TRIAL
DEMANDED**

WEINSTEIN, J.

Defendants.

ORENSTEIN, M.J.

Plaintiff Stephen Kenner, by his attorneys, Galluzzo and Johnson LLP, for his Complaint against Defendants City of New York, Police Officer Michael Yu, shield number 19716, and Police Officer John Doe, employed by the New York City Police Department each in their individual and official capacities, upon personal knowledge and upon information and belief, alleges as follows:

NATURE OF THE ACTION

1. On July 16, 2014, between approximately 7:00 and 8:00 PM, Plaintiff was driving a vehicle on East New York Avenue in Brooklyn. Police Officers Michael Yu and John Doe, operating a marked police vehicle, got behind Plaintiff's pick-up truck and forced it to pull over at the intersection of Powell Street and East New York Avenue without any cause or articulable reason. Defendant Police Officers Michael Yu and John Doe proceeded to search the back of the truck without Plaintiff's permission, consent or any legal authority to do so. After conducting the search (which yielded no contraband or evidence of any crime) and without any cause to believe that Plaintiff had committed any offense whatsoever, Defendants forced Plaintiff out of his vehicle, placed him in handcuffs and arrested him. Defendant Police Officers Michael Yu and John Doe transported Plaintiff to the 73rd Police Precinct where they placed him in a holding cell

for approximately three hours. They fingerprinted and photographed him, and placed him back in the holding cell for approximately another three to four hours. Plaintiff was then charged with a misdemeanor and was given a desk appearance ticket. Plaintiff was arraigned on the desk appearance ticket on October 29, 2014, at the Kings County Criminal Court. On January 12, 2015, the case was adjourned in contemplation of dismissal with a one-day sealing.

2. Plaintiff brings this action against the aforementioned police officers, and their employer, the City of New York for their violations of civil rights under 42 U.S.C. § 1983, battery, false arrest and false imprisonment.

PARTIES

3. Plaintiff is a natural person who resides in Queens County in the City and State of New York.

4. Defendant City of New York is, and was at the time of the incident giving rise to this action, a municipal corporation duly organized under, and existing by virtue of, the laws of the State of New York. At all times relevant to the action, Defendant City of New York employed Defendant Police Officers Michael Yu and John Doe in connection with its control, operation, and maintenance of the New York City Police Department.

5. At all relevant times, herein, defendant Police Officers Michael Yu, shield number 19716, and John Doe were police officers employed by the New York City Police Department and were acting in the capacity of agent, servant, and employees of the City.

JURISDICTION AND VENUE

6. This action is brought pursuant to 42 U.S.C. §§ 1983, 1988 and the Fourth and Fourteenth Amendments to the Constitution of the United States.

7. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331, 1343(a)(3) and (4).

8. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

9. Venue is proper for the United States District Court for the Eastern District of New York pursuant to 28 U.S.C. § 1391(a), (b)(1), (b)(2) and (c) as a substantial part of the events or omissions giving rise to the claim occurred in the County of Kings, New York which is within the Eastern District of New York and in that New York City resides for venue purposes within the Eastern District of New York.

PROCEDURAL REQUIREMENTS

10. Plaintiff has complied with New York State General Municipal Law section 50 and all procedural requirements necessary to commence a lawsuit against Defendants, including Defendant City of New York.

11. This is an action for injuries sustained by Plaintiff arising out of actions perpetrated by Defendants on July 16, 2014.

12. On or about October 15, 2014, within ninety days after the accrual of the instant action, a satisfactory Notice of Claim was filed with Defendant City of New York, or its agent(s), on behalf of Plaintiff.

13. On or about January 16, 2015, Plaintiff appeared and testified at a hearing pursuant to Section 50(h) of the General Municipal Law of New York at the request of Defendant City of New York or its agent(s).

14. Defendant City of New York, and/or its agent(s), has refused or neglected to make any adjustment or payment on Plaintiff's claims (as stated in Plaintiff's Notice of Claim).

15. Plaintiff commences this action within one year and ninety days of the date of accrual of the instant action.

FACTUAL ALLEGATIONS

16. At all relevant times, Plaintiff was working for Elijah Home Improvement, a family-based construction business, at Fountain House, a job site located at 425 West 47th Street in New York County.

17. On the night of July 16, 2014, Plaintiff was operating a 2001 white Dodge Ram vehicle, on East New York Avenue in Brooklyn.

18. After finishing his day's work, Plaintiff removed some construction debris from the work site to haul to the dump. He filled the bed of his pickup truck with the debris, which consisted of a few pieces of wood with some nails on it, and covered it with a tarp.

19. Plaintiff then left the work site with his coworker, Knigle Boone, who he offered to drive home. Plaintiff dropped Boone off at his home at 37 New Lots Avenue in Brooklyn, and began driving to his home in Queens.

20. At approximately 7:00 or 8:00 PM, a marked New York City Police Department vehicle approached Plaintiff's vehicle, engaged its sirens and forced Plaintiff to pull his vehicle over to the side of the road. Despite having committed no traffic offense, Plaintiff complied with the orders of the police officers and pulled his vehicle to the side of the road at the intersection of Powell Street and East New York Avenue.

21. Two uniformed police officers, Defendant Police Officers Michael Yu and John Doe, exited the marked vehicle and approached Plaintiff's vehicle.

22. Defendant Police Officer John Doe came to the window and asked for Plaintiff's driver's license. Defendant Police Officer Michael Yu went to the back of the Plaintiff's vehicle and looked under the tarp without any permission to do so.

23. Police Officer John Doe then told Plaintiff, in substance, that it was against the law to carry construction material in the back of a truck. Of course, this advice was absurd.

24. Without providing any further explanation, Defendant Police Officer John Doe demanded that Plaintiff get out of his vehicle and Plaintiff complied.

25. Plaintiff explained he was working for a non-profit construction business and that he was simply hauling construction debris away from the job site. Defendant Police Officer John Doe asked Plaintiff for a receipt for the wood and Plaintiff answered that he did not have one, as the wood was garbage because it was full of nails.

26. At that point, Defendant Police Officer John Doe asked Plaintiff to put his hands against his back, placed him in handcuffs and patted Plaintiff down without permission to do so.

27. Police Officers Michael Yu and John Doe further restrained Plaintiff by placing him inside of the marked police vehicle, all without probable cause or reasonable suspicion that any offense had been committed.

28. Against his will, and after having committed no arrestable offense, Plaintiff was removed to the 73rd Police Precinct in Kings County, where he remained until approximately 2:18 AM the next day, July 17, 2014.

29. While at the police station, Plaintiff was placed in a holding cell for approximately three hours, photographed and fingerprinted by one of the police officers.

30. After being photographed, Plaintiff was placed back in the holding cell for another three to four hours before being released with a desk appearance ticket ordering him to

appear before the Kings County Criminal Court and charging him with a bogus charge of “LOC000.00 UM”.

31. At the initial court date, on October 29, 2014, Plaintiff was told he was charged with destruction or removal of property in building or structures, a misdemeanor under Administrative Code 10-118(b), for allegedly “pushing a cart containing wood beams” “on a sidewalk which is a public street or way”.

32. The criminal court complaint asserted that the grounds of the charges were the sworn statement of Defendant Police Officer Michael Yu, who stated he had observed the Plaintiff pushing a cart containing wood beams on the sidewalk. Paralegal Kristel Haig signed the criminal court complaint under penalty of perjury.

33. On the second court date, on January 12, 2015, Plaintiff's case was adjourned in contemplation of dismissal with a one-day sealing.

FIRST CLAIM FOR RELIEF
VIOLATIONS OF CIVIL RIGHTS UNDER 42 U.S.C. 1983
As Against Defendant Officers Michael Yu and John Doe

34. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 33, inclusive, as though fully set forth herein.

35. By the aforesaid acts, Defendants have violated Plaintiff's rights to the equal protection of laws under the Fourth and the Fourteenth Amendments among other violations to the United States Constitution, thereby giving rise to a cause of action pursuant to 42 U.S.C. 1983.

36. The conduct and actions of Defendant Police Officers Michael Yu and John Doe, acting under color of law in falsely imprisoning and detaining Plaintiff were done intentionally,

maliciously, and/or with a reckless disregard for the natural and probable consequences of their acts. These acts had no lawful justification and were designed to and did cause mental and emotional harm and suffering to Plaintiff in violation of Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. 1983, et seq. Defendant Police Officers Michael Yu and John Doe deprived the Plaintiff his Constitutional rights including, but not limited to, his rights under the Fourth and Fourteenth Amendments guaranteeing due process and equal protection under the law, and Title 42 U.S.C. 1983, et seq.

37. The aforementioned actions taken by Defendant Police Officers Michael Yu and John Doe – and thus, by Defendant City of New York – against Plaintiff were willful, wanton, reckless, and malicious, and therefore entitle Plaintiff to punitive damages in an amount to be determined at trial.

SECOND CLAIM FOR RELIEF
BATTERY
As Against Defendants

38. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 37, inclusive, as though fully set forth herein.

39. On July 16-17, 2014, Defendant Police Officers Michael Yu and John Doe, through their actions, intentionally initiated unwanted physical contact with Plaintiff without his consent.

40. Defendant Police Officers Michael Yu and John Doe handcuffed and restrained Plaintiff without legal justification, causing Plaintiff to sustain injuries.

41. Defendant Police Officers Michael Yu and John Doe took these actions against Plaintiff during the course, and within the scope, of their employment with Defendant City of New York.

42. Defendant City of New York is liable for the acts of its agents/employees, including, but not limited to, Defendant Police Officers Michael Yu and John Doe, taken against Plaintiff during the course, and within the scope, of employment with Defendant City of New York, under the doctrine of *respondeat superior*.

43. The actions taken by Defendant Police Officers Michael Yu and John Doe – and thus, by Defendant City of New York – against Plaintiff were willful, wanton, reckless, and malicious, and therefore entitle Plaintiff to punitive damages in an amount to be determined at trial.

THIRD CLAIM FOR RELIEF
FALSE ARREST
As Against Defendants

44. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 43, inclusive, as though fully set forth herein.

45. On July 16-17, 2014, Defendant Police Officers Michael Yu and John Doe intentionally arrested and confined Plaintiff without probable cause and without his consent.

46. The actions of Defendant Police Officers Michael Yu and John Doe caused injuries to Plaintiff, including psychological injuries.

47. Defendant Police Officers Michael Yu and John Doe took the aforementioned actions against Plaintiff during the course, and within the scope, of their employment with Defendant City of New York.

48. Defendant City of New York is liable for the acts of its agents/employees, including, but not limited to, Defendant Police Officers Michael Yu and John Doe, taken against Plaintiff during the course, and within the scope, of employment with Defendant City of New York, under the doctrine of *respondeat superior*.

49. The aforementioned actions taken by Defendant Police Officers Michael Yu and John Doe – and thus, by Defendant City of New York – against Plaintiff were willful, wanton, reckless, and malicious, and therefore entitle Plaintiff to punitive damages in an amount to be determined at trial.

FOURTH CLAIM FOR RELIEF
FALSE IMPRISONMENT
As Against Defendants

50. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 49, inclusive, as though fully set forth herein.

51. On July 16-17, 2014, Defendant Police Officers Michael Yu and John Doe intentionally caused Plaintiff to be imprisoned and confined in a police precinct operated by the New York City Police Department, which is operated and controlled by Defendant City of New York.

52. Defendant Police Officers Michael Yu and John Doe did not have probable cause or other justification to imprison and confine Plaintiff at this precinct.

53. Plaintiff did not consent to the aforementioned imprisonment and confinement.

54. The actions of Defendant Police Officers Michael Yu and John Doe actions caused injuries to Plaintiff, including psychological injuries, among other things.

55. Defendant Police Officers Michael Yu and John Doe took the aforementioned actions against Plaintiff during the course, and within the scope, of their employment with Defendant City of New York.

56. Defendant City of New York is liable for the acts of its agents/employees, including, but not limited to, Defendant Police Officers Michael Yu and John Doe, taken against Plaintiff during the course, and within the scope, of employment with Defendant City of New York, under the doctrine of *respondeat superior*.

57. The aforementioned actions taken by Defendant Police Officers Michael Yu and John Doe – and thus, by Defendant City of New York – against Plaintiff were willful, wanton, reckless, and malicious, and therefore entitle Plaintiff to punitive damages in an amount to be determined at trial.

FIFTH CLAIM FOR RELIEF
FOR RESPONDEAT SUPERIOR AS AGAINST DEFENDANT CITY OF NEW YORK
As Against Defendant City of New York

58. Plaintiff repeats and realleges each and every allegation contained I Paragraphs 1 through 57, inclusive, as though fully set forth herein.

59. Defendant Police Officers Michael Yu and John Doe acted during the course, and within the scope, of their employment by Defendant City of New York.

60. The actions of Defendant Police Officers Michael Yu and John Doe caused Plaintiff to sustain injuries and/or damages, including, but not limited to, the following: psychological injuries, emotional injuries and loss of earnings.

61. Defendant City of New York is liable for any and all damages resulting from the acts of Defendant Police Officers Michael Yu and John Doe taken against Plaintiff during the course, within the scope, of their employment by Defendant City of New York.

DEMAND FOR JURY TRIAL

Plaintiff demands a trial by jury.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff seeks judgment in his favor and against Defendants, jointly and severally, for damages for the following relief:

- a. Compensatory damages against Defendant's, jointly and severally, in an amount to be determined at trial, with pre- and post-judgment interest;
- b. Attorneys' fees and the costs of the instant action, including all costs incurred herein;
- c. punitive damages; and
- d. such other and further relief as the Court deems just and proper.

Dated: New York, New York
May 29, 2015

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